

23SMCV01125 23SMCV01125

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-19

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Case Number: 23SMCV01125 Hearing Date: August 19, 2026 Dept: 205

HEARING DATE: August 19, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: Fox Holdings, LLC v. Triller, Inc.

CASE NUMBER: 23SMCV01125

COMP. FILED: March 14, 2023

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: Fox Holdings, LLC

RESPONDING PARTY: Triller, Inc.

BACKGROUND

This is a breach of contract case. Plaintiff Fox Holdings, LLC's predecessor in interest (Warner Bros. Digital Services) entered into a written agreement with Defendant Triller, Inc. for advertising services. Plaintiff claims Defendant failed to pay \$153,508.78 due under the agreement.

On March 14, 2023, Plaintiff filed a Complaint alleging a single claim of breach of contract. The Complaint seeks damages of \$153,508.78, plus interest at the rate of 10.00% per annum, reasonable attorney's fees, and costs of suit.

Plaintiff substitute served Defendant on June 26, 2023. Defendant answered but its answer was stricken because it was not represented by counsel. On December 11, 2025, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendant. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Default judgment against Defendant for a total of \$220,479.56, which is comprised of: (1) \$153,508.78 in damages, (2) \$63,001.60 in interest, (3) \$544 in costs, and (4) \$3,425.09 in attorneys' fees.

ANALYSIS

Code Civ. Proc. § 585 sets forth the two options for obtaining a default judgment. First, where the plaintiff's complaint seeks compensatory damages only, in a sum certain which is readily ascertainable from the allegations of the complaint or statement of damages, the clerk may enter the default judgment for that amount. However, if the relief requested in the complaint is more complicated, consisting of either nonmonetary relief, or monetary relief in amounts which require either an accounting, additional evidence, or the exercise of judgment to ascertain, the plaintiff must request entry of judgment by the court. In such cases, the plaintiff must affirmatively establish his entitlement to the specific judgment requested. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287.) Section 585 also allows for interest, costs and attorney fees, where otherwise allowed by law. (Code Civ. Proc., § 585(a).)

Multiple specific documents are required, such as: (1) form CIV 100, (2) a brief summary of the case; (3) declarations or other admissible evidence in support of the judgment requested; (4) interest computations as necessary; (5) a memorandum of costs and disbursements; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code Civ. Proc. § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)

Here, Plaintiff has complied with some but not all the substantive and procedural requirements for a default judgment. Substantively, Plaintiff declares via the declaration of its director of credit and collections (Scott Thomson) that there have been damages in the amount of \$153,508.78. (Thomson Decl. ¶ 6.) The evidence submitted (the contract, chain of title and invoices) is authenticated by declaration. The costs Plaintiff seeks are stated in a verified memorandum. Plaintiff has submitted the declaration of its counsel as to the calculation of interest. However, the declaration does not explain how the attorneys' fees were calculated and accordingly, the Court excludes this amount (\$3,425.09) from the requested judgment. Procedurally, Plaintiff properly served Defendant more than 30 days prior to requesting entry of default and default judgment, correctly completed JC Form CIV-100 in a manner that would not void or put at issue the entry of default, provided a declaration of non-military status, requested damages in amounts supported by the filings and not in excess of the amount stated in the Complaint, requested dismissal of defendant and filed a proposed judgment (JUD-100). As default has already been entered, default judgment is appropriate here.

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is GRANTED IN PART as to Defendant. Judgment in the amount of \$217,054.47, is awarded in favor of Plaintiff.